

Topic 8: World War II

List of Reading Materials:

1. 1943 Constitution
2. Memorandum in War Memoirs
3. Bataan Has Fallen
4. Excerpts from Recto's *Three Years of Enemy Occupation*
5. Executive Order No. 40
6. Excerpt from *1941 Report of the Philippine High Commissioner*
7. Excerpt from *Report of Philippine (Executive Commission)*
8. Letter of President Quezon to Douglas MacArthur, February 20, 1942
9. Message of General MacArthur to the Filipino people, January 1, 1946
10. Message of President Osmeña to Supreme Allied Commander Douglas MacArthur on the occasion of the signing of the Japanese surrender document, September 3, 1945
11. Instrument of Surrender of the Japanese and the Japanese-Controlled Armed Forces

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World War II in the Philippines, 1941-1945

In 1941, the Commonwealth government was interrupted with Japan's bombing of the US Naval Base at Pearl Harbor in Hawaii that started the Second World War. Following the attack of Pearl Harbor, the Japanese bombed Manila and the suburbs. In order to save Manila from destruction, General Douglas MacArthur declared it an open city. However, the bombing continued resulting in the destruction of Manila. Shortly after the occupation of Manila, the Japanese forces established their government in the country that lasted until 1945.

This section includes pertinent documents related to World War II in the Philippines such as the 1943 Constitution, memoirs of political personalities like Jose P. Laurel and Claro M. Recto and

selected articles discussing different themes like public safety, health, education and public instruction. These references are invaluable source of information about the life and struggles of Filipinos during the Japanese occupation.

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The 1943 Constitution

At the outset of the occupation, the Japanese government formed the Philippine Executive Commission which was composed mainly of political leaders of the Commonwealth government. They also organized the KALIBAPI (*Kapisanan ng Paglilingkod sa Bagong Pilipinas*), the only political organization allowed in the country at that time.

On June 16, 1943, Japanese Prime Minister Hideki Tojo promised to grant Philippines its independence. The KALIBAPI then formed the Preparatory Committee on Philippine Independence (PCPI) which was tasked to draft a new Constitution for the Philippines. The PCPI approved the new Constitution on September 4, 1943 and was ratified by the KALIBAPI Convention on September 7, 1943.

The 1943 Constitution adopted 12 of the Articles from the 1935 Constitution with a powerful executive branch vested in the President who is to be elected by a majority of the members of the National Assembly. One notable characteristic of the 1943 Constitution is the absence of the Bill of Rights.

Excerpt:

PREAMBLE

The Filipino people, imploring the aid of Divine Providence and desiring to lead a free national existence, do hereby proclaim their independence, and in order to establish a government that shall promote the general welfare, conserve and develop the patrimony of the Nation, and contribute to the creation of a world order based on peace, liberty, and moral justice, do ordain this Constitution.

Article I: The Republic of the Philippines

SECTION 1. The Philippines is a republican state. The government established by this Constitution shall be known as the Republic of the Philippines.

SEC. 2. The Republic of the Philippines shall exercise sovereignty over all the national territory as at present defined by law.

SECTION 1. The Executive power shall be vested in the President of the Republic of the Philippines.

SEC. 2. The President shall be elected by a majority of all the members of the National Assembly at the place and on the date to be fixed by law.

SEC. 3. No person may be elected President unless he be a natural-born citizen of the Philippines, is forty years of age or over, and has been a resident of the Philippines for at least ten years immediately preceding the election.

SEC. 4. The President shall hold office during a term of six years and may not be re-elected for the following term.

SEC. 5. The term of the President shall end at noon on the thirtieth day of December following the expiration of six years after his election, and from such time the term of his successor shall begin. If his successor shall not have been chosen before such time, or if the President-elect shall have failed to qualify, then the outgoing President shall continue in office until his successor shall have been elected and qualified. In the event of the removal of the President from office or of his death, resignation, or inability to discharge the powers and duties of his office, the same shall devolve on the ranking Minister in the order of precedence established by law until a new President shall have been elected for the unexpired term. In the latter case, the election shall be held within sixty days after such removal, death, resignation, or inability.

SEC. 6. Before assuming the duties of his office, the President shall take the following oath, or affirmation:

“I do solemnly swear (or affirm) that I will faithfully and conscientiously fulfill my duties as President of the Republic of the Philippines, preserve and defend its Constitution, execute its laws, do justice to every man, and consecrate myself to the service of the Nation. So help me God.” (In case of affirmation, the last sentence will be omitted.)

SEC. 7. The President shall have an official residence and receive such compensation as may be fixed by law which shall neither be increased nor diminished during the period for which he shall have been elected, and he shall not receive within that period any other emolument from the government or any of its subdivisions or instrumentalities.

SEC. 8. The President shall have supervision and control of all the ministries, bureaus or offices, all local governments, and all other branches or instrumentalities of the Executive Department, and take care that the laws be faithfully executed.

SEC. 9. The President shall be commander-in-chief of all armed forces of the Republic of the

Philippines and, whenever it becomes necessary, he may call out such armed forces to prevent or suppress lawlessness, invasion, insurrection, or rebellion. In case of invasion, insurrection, or

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rebellion, or imminent danger thereof, or when the public safety so requires, he may suspend the privilege of the writ of habeas corpus, or place the Philippines or any part thereof under martial law.

SEC. 10. The President shall appoint the Ministers and Vice-Ministers, and with the advice of his Cabinet, shall appoint ambassadors, diplomatic ministers and consuls, heads of bureaus and offices, officers of the Army from the rank of [colonel, of the Navy and of the Air forces from the rank of] captain or commander, provincial governors, city and municipal mayors, and all other officers of the government whose appointments are not otherwise provided for by law.

SEC. 11. There shall be a Council of State to advise the President on matters of national policy. It shall be composed of not more than twenty members to be appointed by the President from among citizens who may have rendered distinguished service to the Nation.

SEC. 12. The President, with the concurrence of two-thirds of all the members of the National Assembly, shall have the power to declare war and make peace, and, with the concurrence of a majority of all its members, conclude treaties. He shall receive ambassadors and diplomatic ministers duly accredited to the Republic of the Philippines.

SEC. 13. The President shall have the power to grant reprieves, commutations and pardons, and remit fines and forfeitures, after conviction, for all offenses, upon such conditions and with such restrictions and limitations as he may deem proper to impose. He shall have the power to grant amnesty with the concurrence of the National Assembly.

SEC. 14. The President shall from time to time give to the National Assembly information of the state of the nation, and recommend to its consideration such measures as he shall judge necessary and expedient.

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Laurel, Jose P. 1962. "Memorandum" in *War Memoirs of Dr. Jose P. Laurel*. (September 15 - November 16, 1945) Manila: Laurel Foundation. pp. 1-21.

Jose P. Laurel is known for his distinguished career as a supreme court justice and as a politician. In 1925, he was elected to the Philippine Senate and would serve for one term before losing his re-election bid to Claro M. Recto. In 1934, he was again elected as delegate to the 1935 Constitutional Convention where he headed the committee on the Bill of Rights. He was the Secretary of Justice when Japan attacked Pearl Harbor in December 1941. In 1943, he assumed Presidency under the Japanese-sponsored independence.

After Japan's surrender in 1945, Laurel was arrested and was charged of treason but never tried

due to an amnesty. This memoir was written while in Sugamo Prison in the outskirts of Tokyo, from September 15, 1945 to November 16, 1945. Because the Americans did not allow Laurel to have a writing paper, the memoirs were written across a book, *The World in 2030 A.D.* by the Earl of Birkenhead. This was published by the Jose P. Laurel Memorial Foundation which was founded after his death on November 6, 1959.

Excerpt

MEMORANDUM

I

Before the outbreak of the Pacific War I was Associate Justice of the Supreme Court of the Philippines — was successful law-practitioner and recommended for appointment to the Supreme Bench by the Filipino and the American Bar Associations (1935-36). Was appointed in the month of February, 1936.'

II

When the Philippine Army was federalized and the Pacific War seemed imminent, I wrote a letter to Marshal MacArthur, then also military adviser to the Commonwealth Government, offering my services. He sent me a personal letter appreciating. I thought I could be useful in the Judge Advocate Department.

III

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Around September or October of 1941 President Quezon invited me to breakfast and requested me to be his Secretary of Justice. My first reaction was against it. I was thru with politics and I wanted to make a name in the juridical field and bring about the codification and integration of all our laws. I had already succeeded in the creation of a Code Committee of which Don Ramon Avancena was Chairman and I was a member. But I was prevailed upon and thus I became a member of the President's War Cabinet.

IV

After my induction into office (Secretary of Justice) I attended the meetings of the War Cabinet in the country Manila, March 9, 1962 house of the Quezon's under the shade of a big mango tree just a few feet up from an air-raid shelter. (See photo, opposite page —) I prepared (with former Speaker Roxas —then Lieut.-Col. and aide to Gen. MacArthur—and former Secretary Jose Abad Santos who had just been appointed Chief Justice of the Supreme Court) two radio speeches for President Quezon. The last speech was made inside the air-raid shelter in the presence of U.S. Naval officers, Chief Justice Santos, Secretary Vargas, Mrs. Quezon and children and myself. I think J. E. H. Stevenot and another American in charge of the radio connection were also present.

V

The Cabinet of Pres. Quezon met every day, frequently twice a day — morning and afternoon — up to the time I personally accompanied Pres. Quezon and family to the Presidential landing at the Luneta — from Malacanan bound for Corregidor. President Quezon was terribly nervous and as I shook hands with Doha Aurora she said to me, with copious tears from her eyes — "May God Bless all of you."

VI

It was in one of those hectic days of December (1941) that Gen. MacArthur, accompanied by Lieut-Col. Roxas (in full uniform with overseas cap), arrived at Marikina either while the war cabinet was in session, or I was there because I had an important official business to transact with the President. It was the anniversary of the marriage of President and Mrs. Quezon. I do not remember the exact date. Pres. Quezon and Gen. MacArthur embraced each other and a picture was taken in which I appear with Secretary Vargas and Lt. Col. Boxes (See photo opposite page —)

VII.

I recall that the call of Gen. MacArthur on President Quezon and the radio speech made by him — mentioned in the preceding paragraph, IV — took place after December 8, 1941 when Baguio and other places of the Philippines were bombed by the Japanese. President Quezon was in Baguio when this city was bombed on that date

VIII.

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The daily or frequent meetings of the members of the Cabinet present in Manila continued (some prominent public officials at this time had evacuated Manila) until President Quezon was advised—according to him by Gen. MacArthur — that he might move to Corregidor. The reaction of the President was against it. He believed that the step might be interpreted as abandonment by him of his people. He dictated a letter addressed to Gen. MacArthur refusing to go. I went over this draft which he read at the meeting of his war cabinet in the afternoon of the same day or the following day. The following were present (if memory does not fail me) Vice President Osmena, Chief Justice Santos, Sec. Vargas, Gen. Valdes, Gen. Francisco, Sec. Guinto and others. At this gathering, President Quezon looked sad but not broken in spirit. He moved

from his seat and transferred to my right side, placing himself between Gen. Guillermo B. Francisco and me, and said to me: "What do you think, Secretary? I do not want to go to Corregidor because our people will think I am abandoning them." I replied: "I don't think so; they will understand," and he moved back to his former seat to hear the observation of the people present. The suggestion of all those present — except General Francisco—was that the President had better go. It was felt that the capture of the President would mean the overthrow of the Commonwealth Government and that the suggestion came after a deliberate decision of Washington. Secretary Guinto moved that the members of the Cabinet accompany the President to Corregidor. To this, President Quezon replied that there was not enough space in the island fortress for so many people, and that if he were to go, he should—according to the advice of Gen. MacArthur — pick the people who were to accompany him. He then observed that he would like to have Vice-President Osmena with him because in case anything should happen, Mr. Osmena could take his place, General Valdes, who was then the Secretary of National Defense and a physician-surgeon, Manoling (Manuel Roxas) who after all was already aide to Gen. MacArthur and one or two more members to give hint technical assistance. After adjournment of the meeting, Pres. Quezon said: "Laurel, please wait, I would like to see you." I waited and then followed him to the principal building (coming from the place of meeting behind, under the mango tree). Once in the small reception room where there was a Japanese painting of orchids (I say Japanese because of combination of strong colors peculiar to Japanese painters), first story or floor of the house, the President placed his arm around my waist and said: "Laurel, I would like you to go with me to Corregidor to help me prepare papers and documents there; are you in a position to come?" My reply was: "Yes, Mr. President, if you need me." "Then," he said "get ready, we may leave any moment" And I departed and went to my room in the Executive Building (Malacanan Palace) where I was installed as Secretary of Justice and legal adviser to the President According to my recollection, all this occurred on December 22, 1941. After transacting business in *my* office I went home, started to prepare my belongings, placing them in a suitcase. My wife was sick; she had cardiac ailment and my plan was to tell her on the eleventh hour and bid her and the children good-bye.

IX.

The following day, Dec. 23, 1941, another meeting of the Cabinet was held in the same place under the mango tree in Marikina. President Quezon and Vice-President Osmena were present. I believe that Manuel Roxas was also present and members of the Cabinet and other important officials of the Government. It was at this meeting that he announced finally those who were to

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go with him; that he would take along Chief Justice Jose Abad Santos, appoint me Acting Chief Justice of the Supreme Court at the same time, and leave me in Manila "to help Mr. Vargas" who became the Mayor of Greater Manila (words in quotation were President Quezon's). It was at this juncture that I raised the very important question pertaining to the conduct and behavior of those of us he was leaving behind; I said: "Mr. President, it is easy to say that you are leaving us to take care of the situation with a view to the protection of our civil population considering the fact that when the Japanese forces come we shall be performing neutral functions pertaining to municipal administration and the administration of justice; but the Japanese may require or

compel us to do many things which are inimical to our Government or that of the United States. In my case, may I leave my position and go to the mountains. I am asking this question, because when you come back you might disapprove of our acts and accuse us of disloyalty. We would hate to be placed in that predicament." "George," said President Quezon in a loud voice; (calling for Secretary Vargas) "Secretary Laurel is raising a very important question *here*"—*he* restated it—"will you call up Gen. MacArthur and find out if I could talk to him?" I do not know whether Pres. Quezon was able to take up this matter with the General but he (Quezon) told me before his departure for Corregidor in the provisional air-raid shelter below the ballroom of Malacanan (with Chief Justice Abad Santos, Gen. Francisco and Secretary Vargas) that he (Quezon) had talked to Gen. MacArthur who told him (Quezon) : "What can you do under the circumstances? You have to do what they ask you to do except one thing—the taking of any oath of allegiance to Japan." In the various conversations that I had with Mr. Vargas—the last during our confinement at the Yokohama Prison—he informed me that he himself had submitted the question to Gen. MacArthur upon instruction of President Quezon, and that Gen. MacArthur's reply was transmitted to me by President Quezon. I must say that Vice-Pres. Clemens and other members of the Cabinet and others were present when I raised the question; and I reported the incident to Don Ramon Avancena and the Justices of the Supreme Court at the time.

X

December 24, 1991. I accompanied Pres. Quezon and family from Malacanan Palace to the Presidential landing at the Luneta in the hour between 1 and 2:00 p.m. I saw Dr. Antonio Bison (whom I took in my car on my way home), Don *Vicente* Madrigal and also Col. Antonio Torres, Chief of the Manila Police, who was waiting to see the President. In this connection (*vide* paragraph V. *supra*).

XI.

Before departure or already in Corregidor, President Quezon reorganized and simplified the Government setup but I was left as Secretary of Justice and at the same time Acting Chief Justice of the Supreme Court," with definite instruction to stay or remain in Manila "to help Mr. Vargas" in protecting the civilian population, bearing in mind the line of action embodied in the reply of Gen. MacArthur as transmitted to me by Pres. Quezon (See paragraph IX, above) and later confirmed by Mr. Jorge B. Vargas.

XII

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Since then (Dec. 24) I never had occasion or opportunity to contact Pres. Quezon or any of his companions. Mr. Vargas, I understand, was able to communicate with Pres. Quezon before the entry of the Japanese forces into Manila which took place on January 2, 1942.

XII

After the departure of Pres. Quezon, Mr. Vargas, who was then the Mayor of Greater Manila, became the head and representative of the Commonwealth Government with me helping him. I was all the time practically with him in Malacanan and, when necessary, we transacted business

by telephone.

XIV

On December 31, 1941, we were informed that the advance unit of the Japanese forces were near Manila. Mr. Vargas called me to his office in Malacanan and told me that the plan was for a representative of the Commonwealth Government to go with the Japanese Consul-General, Jitaro Kihara, and meet the Zones coming from the south. Because of certain difficulties, I was not able to go but Consul Kihara, accompanied by his assistant (Mr. Okazaki) and General Arsenio Natividad went as far as the town of Began, Laguna, where they contacted the first contingent of the Japanese invading forces. They used a Cadillac-7 passenger or (also chauffeur) No. 6, that I was using then as Acting Chief Justice of the Supreme Court.

XV

There was confusion, excitement and general consternation when the Japanese unit entered Manila in the afternoon of Jan. 2, 1942. Before this date, Manila and Cavite were bombed with many casualties. Sto. Domingo Church, Intendencia Building, the Philippine Herald Building and other important buildings in Intramuros were destroyed; the Cavite Naval area was razed to the ground; looting was rampant all over Manila; the Manila Police had to be disarmed; wild rumors were circulated — these and more contributed to the deplorable state of moral collapse of the people of Manila at the time of the occupation of that city by the Imperial Japanese forces.

XVI

Among the first high ranking officials of the Japanese Army that entered Manila were Lt.-Col. Maeda and Maj. Gen. Hayashi. The name of the Commander-in-chief was kept secret, although somehow it was known that he was Gen. Homma. Gen. Maeda, who was the Chief of Staff, occupied the Manila Hotel. I think Gen. Hayashi went to the Army and Navy Club building. Around the 4th or 5th of that month of January (1942) several Japanese residents of importance in the Philippines began to contact prominent Filipinos in Manila. Mr. Imamura introduced Mr. Vargas to Gen. Maeda and Mr. Kanegae accompanied Messrs. Aquino, Recto and Alunan. I think that Mr. Paredes and I were also introduced to General Maeda but at different dates. There might have been other people who had seen Gen. Maeda. Later Consul Kihara and Mr. Morokuma arrived from Japan and contacted Vargas and the other Filipinos

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who saw Gen. Maeda. They were told forthwith to organize themselves into what was called "central administration organ," ostensibly for the maintenance of peace and order and as instrumentality of the consequent military occupation of certain places by the Japanese forces.

XVII

As the order of Gen. Maeda was imperative and urgent, Mr. Vargas, who was our representative and spokesman, suggested that a meeting be held at the call of former Speaker Yulo who at the time was President of the Nacionalista Party, the ruling party of President Manuel L. Quezon. This was done and for almost two weeks we met in the house of Speaker Yulo at Peñafrancia. In the beginning few were able to attend. Stenographic notes of the proceedings were taken but according to Mr. Yulo they were destroyed for fear of the Japanese. The reply to the directive of Gen. Maeda, addressed to Mr. Vargas asking us among other things to organize and to entirely cut or sever our connections with the Americans was the subject of a prolonged discussion. A temporary political expedient was the continuation of the Commonwealth Government and its officials. This was rejected, however, by Gen. Maeda on the ground that the Commonwealth was a creation of the United States and fought the Imperial Japanese Forces. After repeated conferences of Mr. Vargas (who, as observed, was the spokesman) and Gen. Maeda we were definitely told to organize an entirely new setup. Everybody wanted to be excused, considering that the American-Filipino forces were still fighting the enemy in Bataan and Corregidor. We were, however, made to understand that failure to organize in the manner indicated would be deemed a hostile act; that military administration would have to be established any way either by the Japanese themselves or other Filipinos. (About this time, Mr. Benigno Ramos and General Artemio Ricarte had come to the forefront and were active) and we were finally given 24 hours within which to act. Our conformity was thus obtained and Mr. Vargas sent a formal letter and a list of prominent Filipinos who became members of the Council of State. These Filipinos were invited to the U.S. High Commissioner's building and a photograph was taken.

XVIII

The high command of the Japanese Army later selected the people who were to become members of what was known as the Executive Commission (Ad. Order No. 1, Jan. 23, 1943, addressed to Jorge Vargas). Mr. Jorge B. Vargas became chairman, Benigno Aquino, Commissioner of the Interior, Antonio de las Alas, Commissioner of Finance, Jose P. Laurel, Commissioner of Justice, Rafael Alunan, Commissioner of Agriculture and Forestry, Claro M. Redo, Commissioner of Education and Public Welfare, Quintin Paredes, Commissioner of Public Works and Communications, and Teafilo Sison, Auditor General and Director of the Budget. I pleaded to Mr. Vargas that I be retained in the Supreme Court, but he said that could not be done because the High Command of the Japanese Army had already decided. I forgot to state that Mr. Jute Yulo became the Chief Justice of the Supreme Court in this setup. I think that the Executive

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Commission was formally organized Jan. 23, 1942, although we received our appointments as commissioners several days later.

XIX

In my capacity as Commissioner of Justice. I endeavored to retain everybody and to leave

the organization undisturbed. But the military people began to interfere, to submit appointments and actions for approval; I was surrounded by a group of military advisers who were utterly incompetent and unfamiliar with the progress and development of juridical science in other parts of the work' and it soon became unbearable. Members of the *Kempeitai* (military police) would appear before courts and judges and ask for the dismissal of cases which were actually being tried. In one case, Judge Cervasio Diaz, of the Court of First Instance of Manila had to abide by the desire of the military people on account of fear. In another case, a fiscal of the City of Manila in the course of an investigation of a criminal case had to run away and hide under a table when an agent or officer of the military, accompanied by a *Japanese* interpreter who was apparently interested in the case, began slapping everybody in the room. Other incidents occurred; and, in the prey-nee, it was worse. To give at least a semblance of regularity to the administration of Justice I issued a circular prohibiting dismissal of raw pending trial or investigation except in due course of legal procedure. For this circular. I *was* asked to report to Fort Santiago and detained for three hours and asked to repeal the circular. Mr. Emilio Abello who was my brilliant assistant commissioner *is* in a position to give the necessary information pertaining to the administration of justice during this time.

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Each commissioner must have had his *bitter* experience this time. Mr. *Vargas* is in a better position to give an account of what had transpired during this period, he being the chairman of the Council of State and of the Executive Commission. The official acts of the Executive Commission are a matter of record. The government was reorganized, administrative orders issued by the Chairman of the Executive Commission on matters covering an extensive field, including city, provincial and municipal administration. What the Japanese military authorities wanted had to be done. Consul Kihara received the military orders and instructions for Mr. Vargas. We were made to send cables to President Roosevelt and President Quezon and a manifesto to the fighting Filipinos in Bataan and Corregidor. To save ourselves and avoid retaliatory measures from the Japanese, all these things had to be done. The cruelties in dealing with Filipinos since Japanese occupation and the very idea of "Fort Santiago" had stricken terror in the hearts of the Filipinos. We protested and demonstrated, but to no avail; they did what they warned. Perhaps the only consoling feature was our intervention in behalf of war prisoners. We were allowed to file a petition for their release (after many had perished) ; we were able to intercede in behalf of Gen. Manuel Roxas who was a prisoner of war in Mindanao (I talked personally to Gen. Homma-- in behalf of Gen. Roxas and Chief Justice Abad Santos but the latter seemed to have been executed already). Aquino and I also talked to Gen. Hayashi in

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behalf of these two Filipinos. We tried to help the prisoners of war by giving them what we could in the midst of antipathy of the Japanese. I had in the Department of Justice Gen. Alberto Ramos, Col. Poblete and Col. Sevilla and others, and in the Department of the Interior a special section was organized to give these ex-prisoners of war temporary employment or relief. They had to live: and there was nothing left undone in this direction. The same efforts were made in Malacanan and in all the departments, bureaus and offices of the Government

XXI

Much more perhaps could be said of the Executive Commission but reference to the official records becomes necessary. The Executive Commission covers a period from Jan. 23, 1942 to October 14, 1943—about 1 year and 8 months announced that the policy with respect to the Philippines was to give her independence as early as possible upon tangible evidence of collaboration with Japan in the establishment of the Co-prosperity sphere. This policy was reiterated by him in a subsequent pronouncement and re-affirmed on the occasion of his first official visit to the Philippines. There was some kind of excitement but no spontaneous or genuine rejoicing on the part of the people in general. There was doubt as to what kind of independence it was going to be. The association with the Japanese was full of misgivings; the general impression being that the political education of the Japanese was inferior to the Filipinos and that their methods were feudal, cruel and inhuman. The more intelligent group recalled the experiences of peoples of *China*, Manchukuo, Korea and Formosa. On the other hand, the star being still in progress, it was felt that the granting of independence was not opportune. General Roxas and I discussed this point and we coincided in the expression of this view and of the precarious character of independence once obtained. He and separately transmitted this view to Gen. Wachi, the Chief of Staff of the Japanese Army in the Philippine. We became convinced that the granting of independence to the Philippines was part of the general plan of Japanese political propaganda "to emancipate the peoples of Greater East Asia" and could not be deterred; some Filipinos expressed the opinion that refusal to accept the offer of political independence would place the Filipinos in an awkward position many, on the other hand, said that any change from the 'military administration would be an advantage to our people; and all agreed that after all, in the end, the United States would understand the predicament in which the Filipinas (mind themselves).

XXII

As early as January 21, 1941 December, 1942 *the* Kalibapi (Kapisanan sa Paglilingkod sa Bagong Pilipinas) was organized by the Executive Order of the Chairman of the Executive Commission at the instance of the military authorities (the idea was, I think Gen. Wachi's) patterned after the Yoko Sankai of Japan and the Concordia of Manchukuo. The fundamental idea behind it was the abolition of all political parties and the integration of all the Filipinos for purposes of an effective totalitarian government and the realization of the ideals expressed in the order. The Chairman of the Executive Commission *was* made the President and Mr. Benigno Aquino, then Commissioner of the Interior, made the Vice-President and Director-

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General of the Organization. The military authorities offered all facilities, including financial, and a separate central office established in Manila with ramifications in the provinces and municipalities which *were* under Japanese control. Because of the transfer of Mr. Aquino to the Kalibapi I was moved from the Department of Justice and became the Commissioner of the Interior.' I requested Chairman Vargas to keep me in the Department of Justice but he told me

that my transfer had been decided upon by the high command of the Japanese Army.

XXIV

Peace conditions were very bad; when I assumed office Gen. Jose de Ion Reyes was at the head of the Constabulary organized and "rejuvenated" by the Japanese military authorities; several constabulary academies were established by said authorities; and many Filipino war prisoners were made to enter these academies. Many of them entered because they had to live and had no other means of survival. Gen. Francisco, Col. Arsenio Natividad and Col. Alberto Ramos were later made director and assistant directors, respectively, of the organization. The provinces and municipalities being under my administrative supervision as well as the Constabulary, I was placed by Chairman Vargas at the head of the pacification campaign and each commissioner was assigned a district. This pacification campaign was not only a requirement of the Japanese military administration but the only alternative, in the opinion of the members of the Executive Commission, if something had to be done to minimize the killing, among other things, of so many people. The Japanese, true to their announcement, (soon after the cremation of Manila) for every Japanese killed, wiped out men, women and children and even the inhabitants of an entire barrio. The Filipinos, on the other hand, were killing each other. Many styled themselves as "mientres" when in reality they were not, and had no political ideology whatsoever. Many of them robbed or killed to rob. Gen. Roxas told me that the idea of Gen. MacArthur was for the guerillas to "lie low" until the opportune time and that this had reference to genuine guerillas and not to groups devoted to rapine and banditry. This must be the case if the Filipinos were to have any chance of survival. Hence in our pacification campaign in Davao, General Francisco who accompanied the party, and Major Batongmalaque who was the senior inspector of Constabulary in Davao, were in contact with guerilla leaders who assumed the obligation to protect the people outside the cities and towns. This information was confidentially transmitted to me by Gen. Francisco in a hotel in Davao. It was here in Davao, when crossing a flooded river, that we almost lost our lives when the ferry-boat was carried by the current, hit a dynamited bridge and capsized. The principal members of our party were. Mr. Benigno Arstino, Asst. Commissioner Arsenio Bonifacio. Gen. Francisco, and Adviser T. Shiohara. We returned to Manila about the end of May, 1943.

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As Commissioner of the interior, I also had supervision over games and amusements. The Department of the Interior had a separate division in charge of games and amusements. It was in this division that we were able to take care of many released prisoners of war. Upon arrival from Mindanao, I had to decide a case involving the fraudulent character of a horse race, held in the San Lazaro Hippodrome. I appointed Col. Telesforo Martinez, an honest and upright veteran, then Chief of the Public Order Division to make the inquiry immediately. He submitted a report upon receipt of which I ordered the dismissal of the judges, the disqualification of a

jockey — the details I don't remember — and cancelled the race and ordered the devolution to the public of the amount or amounts involved In the controversy. This decision, I was informed, incurred the dissatisfaction of the persons adversely affected.

XXVI

Early morning of June 5, 1943, while I was playing golf at the Wack Wack Country Club in Mandaluyong, with Dr. Nicanor Jacinto, President of Far Eastern University Nicanor Reyes, Dean Leoncio B. Monzon Liling Roces, Aurelio Montinola, Sr. and Enrique Katigbak in two groups. I was treacherously shot from behind just about 12 or 15 yards:, from Tee No. 7 where I was standing by. With the help of Dr. Jacinto, Dean Monson and Pres. Reyes, I was taken to my car and moved to the Philippine General Hospital where I was attended by Drs. Antonio Sison, Nicanor Jacinto, Ramon Macasaet. Januario Estrada. Fortunato Guerrero, Col. Ishii and others. I stayed in the hospital for about two months.

XXVII.

There was a great deal of discussion as to why I was attacked. I myself, to the present day, do not know. The current belief was because I was a pro-Japanese. The other version was because of the San Lazaro incident mentioned *in* the preceding paragraph. I, of worse, deep resented the cowardly and treacherous character of the attack, but I felt more the accusation that I was pro-Japanese was not pro-Japanese Furthermore, I was in the government against my wishes and if I remained it was because of specific instruction of President Quezon and deeply my heart I mild not love the Japanese more than my own people. The other reason (S. Lazaro incident) was also possible but seemed to have been discarded by the Japanese military and Filipino civil authorities. Motive of personal character was likewise discarded because I had no personal enemies. Because of the position I held in the Executive Commission which was the civil agency created by the Japanese military authorities, the *Kentpeilai* (Japanese Military Police) arrested a number of people and after a few days published the photographs of some four or five persons said to have been killed or executed for alleged attempt against my life. I told the Military Police (through Captain Yanase) that I did not believe they were the authors of the crime and that the finding of the Manila Police under Col. Torres seemed more rational pointing to a certain "Little Joe" as the guilty party. He (Little Joe) great physical similarity to the man who had assaulted at the Wack Wack golf course. This Little Joe was later demanded by the *Kempeitai* but I told them that I was not certain whether he was the man and that they (the Japanese) having already found (according to them) and executed the guilty

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parties without consulting me. this man (Little *Joe) should not be executed. This attitude of mine reached the knowledge of some people and I received an anonymous letter admiring "my bigness of heart" The truth is that, having assumed the obligation to help my people to survive and to tide them over to better times I did not want to be in anyway responsible for the killing or suffering of any of my countrymen. I condemn. cowardice and treachery but I must respect the political ideology of people plunged into desperation in a situation in which I played an important role.

XXVIII

Whatever the reason or motive behind the shooting at Wack Wack, I attracted considerable public attention. My survival was marvelous. The people who have known me, the sacrifice I was making, the instruction I had received from President Quezon, my own public record, my little reputation earned during more than 35 years of public service brought me more forcibly to the attention of the Japanese administrators. And so, when the preliminary steps had to be taken with a new to Philippine independence I was at the head of the list of the Filipinos who were to integrate the Preparatory Commission for Philippine Independence.' The members of this Commission were, it is true, named by the Kalibapi which had been specially called for the purpose, but the selection had to be made from the list informally submitted by the military police. I became chairman of the Preparatory Commission when I was still confined in the Philippine General Hospital; Don Ramon Avanceria, the first vice-president; Don Benigno Aquino, 2nd vice-president; and Messrs. Caro M. Recto, Quintin Paredes, Jose Yulo, Chairman Varga Emilio Aguinaldo, Sultan Sa Ramain., Pedro Sabido, Manuel Mons, Col. Osiers. Teofilo Sison, Antonio de las Alas, Melecio Arran; Vicente Madrigal, Rafael Munan, Miguel Unson, Manuel Briones, Emilio Tria Tirona and other members. We proceeded to organize accordingly to prepare a constitution for the Philippine Republic as we were urged. The first two meetings were presided over by Don Ramon. Advancena. The third meeting I convoked in the Philippine General Hospital in a room opposite mine in Ward No. 20 or 22. I submitted a plan indicating two alternatives. After several meetings the first draft was approved and submitted to the Convention of the Kalibapi and approved. The discussion, incidents and difficulties are not here mentioned as reference to the record of proceedings and other documents is necessary. Judge Proceso Sebastian was the Secretary of the Preparatory Commission.

XXIX

After the approval of the Constitution of the Republic of the Philippines, the National Assembly had to be organized. The Executive Commission promulgated an election law under which an election was held in the manner provided. Most of the former members of the Legislature of the Commonwealth Government were returned. Hon. Benigno Aquino was unanimously elected Speaker and thereafter I was unanimously elected by the National Assembly President of the newly established Republic of the Philippines. The details, pertaining to the election, organization, etc. of the Assembly are omitted. But it should here be mentioned that Chairman Vargas participated as President of the Kalibapi.

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After my election and that of Speaker Aquino, we (Aquino, Vargas and I) were invited (requested) to go to Tokyo to pay our respects and to report. Mr. Vargas as the retiring chairman of the Executive Commission, and Speaker Aquino and I as newly elected Speaker and President of the impending Republic of the Philippines, respectively. I think we left the

Philippines on or about September 29, 1943, by plane: passed the night at Fukuoka and arrived at Tokyo Haneda airport) the following day. We remained seven! days (3 or 4) in Tokyo; we paid respects to His Majesty, the Emperor and registered our names as visitors of other members of the Imperial family, a banquet was given in our honor by Premier Hideki Tojo in the latter's official residence and official calls were made on the Ministers of War, Navy Foreign Affairs and of Greater East Asia. The most transcendental event, however, was the invitation extended to us by Premier Tojo in the afternoon of the day following our arrival in Tokyo. After ordinary salutations, we were closeted in a conference room adjoining the reception room of his official Residence; Messrs. Jose G. Sanvictores and Leon Ma. Gonzales who accompanied us to Tokyo were not allowed to be present; and after Premier Tojo, Minister Shigemitsu (Foreign Minister) and Aoki (Minister of Greater East Asia), Ambassador Murata, Gen. Wachi and others had taken their seats around a rectangular table, Premier Tojo rose and read his instructions (translated by Mr. Hamamoto) asking us to declare war against the United States and Great Britain. I was seated in front of Premier Tojo and Mr. Vargas was seated on my right while Mr. Aquino, on my left. It was a shock to all three of us; we did not expect this instruction and we were not prepared to meet it on the spot. I silently prayed and said the Pater Noster. After the translation by Hamamoto of the speech of the Premier I got up to say as politely as I could that I could not comply with the request. I said that my people would not approve of it; that I could not carry them; that I have never been a popular leader, the three powerful leaders of the country being Messrs. Quezon, Osmeña and Roxas; that even if I should be willing to do what they wanted me to do, I would be a leader without any following because the Filipinos were opposed to such a step; and that it would not be "decent" for the Filipinos to declare war against the United States that was their benefactor and ally and that only unworthy people could be expected to do that. The unprepared reply seemed to have impressed Messrs. Vargas and Aquino and I was congratulated by them. Afterwards, I was given a copy of this speech of the Premier which I took along with me to the Philippines. After the meeting, I also met Messrs. Sanvictores and Gonzales who were waiting for us in the reception room. I reported confidentially all that transpired to my cabinet and council of state and, I understand, Speaker Aquino also gave an account to the members of the National Assembly. I realized that I was in a most difficult situation. The atrocities reported to us, the Japanese feudal and cruel methods had created a deep hatred against the Japanese and I wished I had not been in this predicament of leadership. When at this time (September 30, 1943) we were asked to declare war against the United States and Great Britain it was evident that independence was being granted with that price; but we could no longer back out. In the language of Tojo our choice. was between extermination or freedom. (Guest House visit). — Personal conf. - Jan., 1943 - Vargas Commission.

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XXXI.

We, (Vargas, Aquino, Sanvictores and Gonzales) returned to the Philippines in the early part of October and on the 14th of that month inaugurated the Republic of the Philippines with appropriate ceremonies. (The details of inauguration may be written later). In the afternoon of

the same day--if I remember correctly—the Republic was made to sign a Pact of Alliance? – political, economic and military (military with reference to the defense of the independence and territorial integrity of the Philippines) and this was done by Claro M. Recto, the Minister of Foreign Affairs of the new Republic. The setup of the Republic was promptly accomplished by the retention of all the Commissioners of the Executive Commission and later the creation of one or two more departments; the retention practically of all those then in the Government service; the extra-legal creation of the cabinet at large in which the Speaker and the Chief Justice of the Supreme Court are ranking members, in the order mentioned, with the President; the formation of a Council of State as provided in the Constitution under the chairmanship of D. Ramon Avanceña; the creation of an Economic Planning Board under former Speaker Manuel Roxas; the reorganization of the *Naric* and the creation of the *Biba*; the establishment of a council of scientists to help, among other things, in the solution of the food problem and a board thereunder to undertake investigation in the field of medicinal plants; and other official activities which are a matter of record and may be verified.

XXXII

The frequent change of command of the Japanese Army (from Homma to Tanaka to Kuroda -- to Terauchi — to Yamashita), the arrests, tortures and disappearance of good people; the inattention to and disregard of our pleas in behalf of our people; the commandeering of houses, animals, automobiles, trucks and properties of private citizens; the confiscation of food supplies; the complete disregard of human dignity; the conqueror's complex; the low non-christian civilization of the great mass of these conquerors; their domination of and dictation to our Government and Government officials -- the preaching contrary to actual deeds — these and more made it evident that the Filipinos were doomed under Japanese occupation or influence and that we were correct in simply trying to do what had to be done for the purpose of tiding our people over to better times; and that I was correct in repeatedly announcing that the primordial policy of the Government was that of national survival." It was during this time that as a matter of duty and personal admiration — to prevent liquidation — that I asked General Roxas to join the Government in any capacity. General Francisco had to transfer to Malacañan as my adviser on peace and order because I was told he would land in Fort Santiago because of his connection with the guerrillas, and had on that account to appoint Gen. Paulino Santos as Commanding General of the Constabulary; I had to advise Gen. Mateo Capin pin to play safe and he realized the menace from the military police, and so with many ex-service men of our Philippine Army,

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like Gen. Alberto Ramos, Gen. Simeon de Jesus, Col. Martinez, Col. Poblete, Col. Sevilla, Col. Castañeda and many others.

XXXIII

Since I assumed the office of President in the midst of hardship and suffering of our people

and after the attempt against my life, I became intensely religious. Everyday and evening, I would go down to the chapel of the Palace, unnoticed, to pray. After the prayer, I felt greatly relieved. Every Sunday morning I invited my colleagues in the Cabinet and other friends to hear Mass in the Malacañan chapel and thereafter to take breakfast with me and then play golf on the other side of the Pasig River. Those who frequently came were Gen. Roxas, Don Ramon Avanceña, Chief Justice Yulo, Minister Recto, Minister Arsenio Luz, Minister Sabido and Secretary Abello. My deep and sincere concern was the salvation of our people. I ordered that everything that Malacañan had be given to the people, especially to the poor and suffering masses. I prohibited social functions in Malacanán. I even prohibited people calling on me on my birthday. I prohibited the giving of gifts to me and to high Government officials for any occasion. And I imposed upon myself and the members of the cabinet the one-course meal service in banquets and regular gatherings. Even in official banquets which we had to give, only one course had to be served. I silently endeavored to share and feel the suffering of our people. I did not overlook the families of people who were away. Secretly and frequently without success I instructed Mrs. Pecson, superintendent of Malacañan Palace, to help Mrs. Osmeña, Mrs. Romulo, Mrs. Valdes, Mrs. Abad Santos and others. Mrs. Pecson is in a better position to state what had been accomplished in this humble, yet sincere attempt. By instinct or some kind of premonition, my wife refused to live in Malacañan, Aside from her aversion to social life she did not like the Palace. I had to go to our modest Peñafrancia home after office hours every day and spend the night there with my wife and children. It was only about three months after my inauguration that she came to visit me in Malacañan and joined Mrs. Trining Roxas (wife of General Roxas) and Mrs. Angela Zobel (wife of Major Jake Zobel) to view the exhibition of cinematographic films in the Palace's formal dining room.

XXXIV.

. The days of my presidency were hectic days. Every day was a day of reflection and prayer. On my inauguration I wanted to visit the Sto. Tomas concentration camp and offer some material relief to my American friends. I wanted particularly to see Mr. Clyde C. DeWitt, my first American teacher in my native town, my lawyer in a case I had in my boyhood days and later my professor in law at the University of the Philippines; but I was sternly cautioned against it because it would be misunderstood by the Japanese. Instead, I visited the Philippine General Hospital where I saw and shook hands with Theo. Rogers (Business Manager of the *Free Press*) who whispered to me that he understood the situation; and also Mr. Heindenreich, formerly

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superintendent of schools of Batangas. I was accompanied by Dr. Antonio G. Sison, Director of the Hospital on this occasion. I also visited the disabled Filipino war veterans in Calle S. Rafael, and the charitable and social welfare institutions all over Manila. God knows how deeply I sympathized with them.

XXXV.

Bearing in mind the instruction I had received from President Quezon --- (with the approval of Gen. MacArthur) *vide pars.* IX-XI — after prayers and meditation, I boldly announced my *national policy*, my *political ideology*, and my *moral philosophy* in my speeches, interviews and conferences. The fundamental national policy, I said, was that of *national survival*. All around us was devastation and suffering. No food, no medicine -- not enough at least of the essentials of life. Means of communication and transportation disrupted; we could not drive away the Japanese because they proved stronger - but we must live and survive as a people, we must tide over our people to better times and for this purpose we must unite, love one another, stop killing one another because only the Filipinos can love the Filipinos. No foreigner can pretend to love the Filipinos more than the Filipinos themselves. As to the *political ideology*, I said that the dream and aspiration of Filipino heroes and patriots have always been complete and absolute political freedom for the Philippines and that all true Filipinos are pledged to the realization of that ideal. I therefore stood for a Government of the Filipinos, by the Filipinos and for the Filipinos exclusively and alone without the interference of, or injunction, or dictation from a foreign power. I announced that my *moral philosophy* - the deeper foundation of my administration was that of righteousness which is divine and is common to all religions worthy of the name; that man lives in the triple world, physical, intellectual and moral; that physical and mental vigor (*mens sana in corpore sano*) is not enough, but that man's life must be dominated by moral principles. I therefore concluded that *righteousness* was the foundation of genuine popular and political leadership (Service to the people on the basis of Righteousness)